

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:

Trf from:

Reviewer: Initials

Date

Agent:

Chief:

To be completed by City/County Clerk

License

Fees

Annual Fee:

\$ 1500.00

Prorated Fee:

\$

Transfer Fee:

\$

Publishing Fee:

\$ 100.00

Publishing Fee Direct Billed to Applicant: ☒

License Term:

Month

Day

Year

Through

Month

Day

Year

Local License #:

R 398750

Date filed with clerk:

1/31/22

Advertising Dates: (2 Weeks)

3/3/22

& 4/2/22

Hearing Date:

4/11/22

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.

Applicant: Billy Jacks - Wyoming LLC

Trade/Business Name (dba): Billy Jack's Pizza Pub

Building to be licensed/Building Address: 4020 Airport Parkway West Suite 1

Number & Street

Cheyenne

WY.

82001

Laramie

City

State

Zip

County

Local Mailing Address: 4020 Airport Parkway West Suite 1

Number & Street or P.O. Box

Cheyenne

WY.

82001

City

State

Zip

Local Business Telephone Number: (308) 250 1867

Fax Number: ()

Business E-Mail Address: jcox@billyjackspizza.com

308 250 1867 Jerry Cox

FILING FOR

☒ NEW LICENSE☐ TRANSFER OF LOCATION☐ TRANSFER OWNERSHIP

FORMERLY HELD BY:

FILING IN (CHOOSE ONLY ONE)

☒ CITY OF: Cheyenne☐ COUNTY OF:☐ ASSIGNMENT LETTER ATTACHED

FILING AS (CHOOSE ONLY ONE)

☐ INDIVIDUAL☐ PARTNERSHIP☐ LP/LLP☒ LLC☐ CORPORATION☐ LTD PARTNERSHIP☐ ORGANIZATION☐ OTHER

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

RETAIL LIQUOR LICENSE

☐ ON-PREMISE ONLY (BAR)☐ OFF-PREMISE ONLY (PACKAGE STORE)☒ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)☐ RESTAURANT LIQUOR LICENSE☐ RESORT LIQUOR LICENSE☐ BAR AND GRILL

LIMITED RETAIL (CLUB)

☐ VETERANS CLUB☐ FRATERNAL CLUB☐ GOLF CLUB☐ SOCIAL CLUB☐ MICROBREWERY☐ WINERY☐ DISTILLERY SATELLITE☐ WINERY SATELLITE☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT

SPECIAL DESIGNATIONS

☐ CONVENTION FACILITY☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM☐ GOLF CLUB☐ GUEST RANCH☐ RESORTTo Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**☒ FULL TIME (e.g. Jan through Dec)☐ SEASONAL/PART-TIME☐ NON-OPERATIONAL/PARKED

(specify months of operation)

from January to December

DAYS OF WEEK (e.g. Mon through Sat)

from Monday to Sunday

HOURS OF OPERATION (e.g. 10a - 2a)

from 8am to 12am

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4**1. BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)

- (a) **OWN** the licensed building? ☐ YES (own)
- (b) **LEASE** the licensed building? (Lease must be through the term of the liquor license) ☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page 2 paragraph 3 "term" of lease.
- (ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page 3 paragraph 6 "use of premises" of lease.
(**MUST** contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES.**)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)

☐ YES ☒ NO

3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)

☐ YES ☒ NO

If "YES", explain: _____

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☒ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. MICROBREWERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☐ BAR AND GRILL

☐ WINERY

(b) Do you self distribute your products? W.S. 12-2-201(a)

☐ YES ☐ NO

(Requires wholesale malt beverage license with the Liquor Division)

8. WINERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☐ BAR AND GRILL

☐ MICROBREWERY

1000

9. LIMITED RETAIL (CLUB) LICENSE:**FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:**VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:**GOLF CLUBS** W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:**SOCIAL CLUBS** W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Billy Jack Winberg	08/18/70	2007 12th Ave. Kearney NE 68845	402 310 6161	2 yrs	36%	YES ☐ NO ☒	YES ☐ NO ☒
Collin S. Nabity	01/27/1972	211 B Ave. Kearney NE 68847	308 440 3700	1.5 years	9.03	YES ☐ NO ☒	YES ☐ NO ☒
Brian Benedict	07/25/1972	117 Cortez St. Sterling, CO 80751		1.5 years	1.05	YES ☐ NO ☒	YES ☐ NO ☒
BRYAN GRZEGORCZYK	08/14/ 1963	1868 Milton Drive Cheyenne WY 82001	307 421 5714	1.5 years	4.79%	YES ☐ NO ☒	YES ☐ NO ☒
Phil Ray Baldwin	03/01/1962	5547 Coal Chute Rd Kearney NE 68847	308 627 1940	1.5 years	1.05	YES ☐ NO ☒	YES ☒ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☒ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

*Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.*

STATE OF WYOMING)

COUNTY OF Laramie)

) SS.

Signed and sworn to before me on this 20th day of January, 2022 that the facts alleged in the foregoing instrument are true by the following:

- | | | |
|--|--|-------------------------------|
| 1) <u>B. J. Winberg</u>
(Signature) | <u>Bill J. Winberg</u>
(Printed Name) | <u>President/CEO</u>
Title |
| 2) _____
(Signature) | _____
(Printed Name) | _____
Title |
| 3) _____
(Signature) | _____
(Printed Name) | _____
Title |
| 4) _____
(Signature) | _____
(Printed Name) | _____
Title |
| 5) _____
(Signature) | _____
(Printed Name) | _____
Title |
| 6) _____
(Signature) | _____
(Printed Name) | _____
Title |



Witness my hand and official seal:

Barbara Major
Signature of Notary Public
Expires 1/7/23

CHEYENNE REGIONAL AIRPORT- LEASE NO. BILLJ-001

THIS LEASE, made and entered into this 1st day September 2021 by and between the **CHEYENNE REGIONAL AIRPORT BOARD**, hereinafter referred to as the "Board," party of the firstpart, and **BILLY JACK'S WYOMING LLC**, a company organized under the laws of the State of Wyoming, hereinafter referred to as "Lessee," party of the second part;

WITNESS ETH:

WHEREAS, the Cheyenne Regional Airport is owned, operated, and maintained by the Cheyenne Regional Airport Board, located within the City of Cheyenne in the State of Wyoming; and

WHEREAS, the Lessee desires to lease certain premises upon the Airport more fully described in paragraph one below; and

WHEREAS, the Board is willing to lease same to Lessee under the terms and conditions hereinafter set forth;

NOW, THEREFORE, for and in consideration of the premises and of the mutual covenants and agreements herein contained, the parties hereto agree as follows:

1. **LEASED AREA:** The Board hereby leases and demises unto the Lessee, and the Lessee hereby hires and takes from the Board, the following described premises, all at the Cheyenne Regional Airport, Cheyenne, Wyoming in the Airport Terminal Building, as shown in red on the enclosed Exhibit "A" incorporated herein by this reference:

A. 2000 square feet, more or less, of restaurant and food service prep/storage space.

B. Lessee will have access to the common areas of the terminal corridor for additional seating, special events, etc., with prior permission from the Airport Director.

C. Lessee agrees and understands the restrooms facilities located in the terminal are non-exclusive.

2. **TENANT'S ACCEPTANCE OF PROPERTY:** Neither the Board nor its agents have made any representations with respect to the leased property except as expressly set forth herein and no rights, easements, or licenses are acquired by the Lessee by implication or otherwise except as expressly set forth in the provisions of this lease. The taking of possession of the leased property by the Lessee shall be conclusive evidence that the Lessee accepts the same "as is" and that the leased property was in good condition at the time possession was taken.
3. **TERM:** The initial term of this lease shall be five (5) years and shall commence as of 12:01 A.M., Mountain Daylight Time, on the 1st day of September 2021 and end at 11:59 P.M., Mountain Daylight Time, on the 31st day of August 2025. Lessee has the option to execute a two-year (2) extension to this lease under the same terms by providing the Board notice ninety (90-days) in advance of the original termination date of the lease.
4. **FEES:** The Lessee covenants and agrees to pay and the Board hereby reserves as rent based on the following schedule.

A. 1,920 sq/ft @ \$7.00 = \$13,440.00 Annually or \$1,120.00 monthly.

B. Five Thousand (\$5,000) refundable security deposit.

The above outlined fees shall be paid in monthly installments at the office of the Director of Aviation, each such installment to be due and payable in advance on or before the 1st day of each calendar month of the term hereof.

In the event any fees required hereunder are not paid within fifteen (15) days of the due date, such sums shall be assessed a late charge at the rate of three percent (3%) per month until paid. Such charges shall be due and owing whether Lessor elects to terminate the lease or waive the default.

These fees will be waived for the first twelve (12) calendar months of the lease. Subsequent fees will be assessed after one-year of restaurant operation, and upon a mutual agreement of

both parties following a review of the first year of operation. The Fees outlined in this lease are subject to change after year-one.

5. **ALTERATIONS:** Any remodeling or alterations must have the prior written approval of the Board. Any remodeling or alterations which take place without the Board's prior written approval shall be removed and the premises restored to its original condition, at the Board's request, and at the Lessee's sole expense. Title to all improvements constructed or installed by the Lessee in or on the demised premises (except trade fixtures which can be removed without damage to the property), and all materials forming part thereof, shall pass to the Board as the same or any part thereof are constructed or installed or otherwise affixed to said premises.
6. **USE OF PREMISES:** The Lessee shall have the right and privilege to occupy the demised premises for the purpose of operating a restaurant/beverage concession and similar related businesses for the preparation and retail sale to the public of food and beverages, including satisfactory provision for ingress and egress to and from said premises. Alcohol or Malt Beverage May be sold on Premises. Lessee may engage, upon the demised premises, only in those activities which are enumerated herein and no other, without the prior written permission of the Board, and Lessee shall use the demised premises for no other or unlawful purposes whatsoever. Lessee shall not commit or permit any nuisance from or upon the leased premises.

The Lessee shall, at all times during the term hereof, actively use the leased areas for the purpose herein specified and shall not at any time leave any part of the leased area vacant without the Airport Board's prior written consent. In the event Lessee abandons any part of the leased area for a period of thirty (30) days, such part may be reclaimed by the Director of Aviation, unilaterally deleted from this lease, and devoted to another use.

All the Lessee's personnel shall be neat and clean in appearance and be appropriately licensed. Lessee's personnel shall comply with all food handling requirements set forth by

state and local agencies. Lessee's personnel shall have automobile parking privileges in areas designated by the Director of Aviation.

In addition to the area listed in Paragraph 1, Lessee shall have the non-exclusive right to provide food and beverage service, in accordance with State, Local and Transportation Security Administration regulations, in the passenger holding area located behind the main terminal on the Aircraft Operations Area (AOA).

7. **OPERATIONS OF BUSINESS:** Lessee shall actively operate a full-service restaurant/beverage concession using the entire leased area and shall use its best effort to accomplish a business-like operation. The food service facility shall, at a minimum be available to meet the reasonable demand for both airline passengers and members of the general public. The Board hereby grants the Director of Aviation the authority to consult directly with Lessee, if required, to establish hours of operation in the best interest of the Airport. Minimum requirements require service for all regularly scheduled airline flights. Lessee may close the facility on selected days or holidays with prior permission from the Director of Aviation. In no event shall the hours of operation be curtailed to an extent that the service contemplated under this Lease shall be diminished.

8. **QUALITY AND CHARACTER OF SERVICE:** It is expressly agreed and understood that all food offered by Lessee shall be of a quality and quantity which is comparable to, or better than, that offered for sale in similar establishments in the Cheyenne area and the service shall be prompt, clean, courteous, and efficient.

In the operation of the business, Lessee shall establish and charge, or shall cause to be established and charged, such rates and charges for the service, commodities and merchandise furnished as, in each case, shall be competitive to those charged for similar services, commodities and merchandise in comparable establishments in Cheyenne with due regard, however, for difference in quality of merchandise or services offered. A schedule of

the rates and charges established shall be subject to review by Lessor prior to their effective date.

The Lessor shall have the right to inspect the conditions of the premises, the quality and quantity of the food, drink, the articles sold, the character of the service, the appearance and performance of service, personnel, and to work together to remedy any questionable practices.

Lessee shall at all times during regular business hours maintain on the Airport, or via a reliable contact phone number, a manager or representative authorized to represent and act for Lessee in matters pertaining to the operation of the Lease.

9. **UTILITIES:** Lessor shall be responsible for costs to provide area with heat and air conditioning, water, sewer, and waste removal charges included in the leased area. Lessee agrees to pay one hundred (100%) of the total utility for gas and electric for the entire restaurant space. Lessee shall be responsible for all costs related to phone services, cable services, and cleaning of leased premises.
10. **MAINTENANCE:** Board shall keep and maintain the roof and structural portions of the leased premises, the plumbing and sewage facilities, heating, air conditioning and mechanical equipment, if equipment owned by Lessor, except that only damage thereto caused by an act or negligence of Lessee, its employees, agents, invitees, subtenants, licensees, assignees, or contractors, in which event such damage shall be promptly reported by Lessee. Other than as herein provided, Board shall not be responsible to maintain or make any improvements or repairs of any kind in or upon the leased premises.

If cleaning of the grease trap or servicing/cleaning of the vent hoods becomes a requirement as a direct result of Lessee's operation, such activity shall be the responsibility of the Lessee.
11. **ASSIGNMENT AND SUBLETTING:** This lease is not available for assignment of subletting.

12. **AGREEMENTS WITH THE UNITED STATES OR THE STATE OF WYOMING:**

This lease is subject and subordinate to the terms, reservations, restrictions, provisions and conditions of any existing or future agreement between the Cheyenne Regional Airport and the United States or the State of Wyoming relative to the operation and maintenance of the Cheyenne Regional Airport and its appurtenant facilities, the execution of which has been or may be required as a condition precedent to the participation by any federal or state agency in the extension, expansion or development of said airport or its facilities.

13. **MINORITY BUSINESS ENTERPRISES:** Lessee hereby assures that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of any contract including leases covered by 49 Code Federal Regulations, Part 23, on the grounds of race, color, national origin or sex. Lessee further assures that it will include the language of this paragraph in all sub-leases and cause all sub-leases to similarly include this clause in further sub-leases.

14. **COMPLIANCE WITH LAWS:** The Lessee covenants that it will use the demised premises in accordance with all applicable laws and ordinances as well as in compliance with regulations either governing or adopted by the Board for the management, control, and operation of the Cheyenne Regional Airport.

15. **SIGNS:** Lessee shall not paint or maintain any signs whatsoever, upon the demised premises without the prior written permission of the Director of Aviation.

16. **RIGHT OF INSPECTION:** The Board reserves and retains for its officers, employees, and authorized representatives the full and unrestricted right to enter the premises for an emergency for the purpose of inspecting or protecting such premises and of doing any and all things which the Board deems necessary for the proper general conduct and operation of the Cheyenne Regional Airport. For non-emergency inspections the Board will provide a 24-hour notice of such inspection.

17. **CANCELLATION AND TERMINATION:** The Board may cancel and terminate this lease without cause, and may repossess the premises, with or without process of law, without liability, in the event any installment of rent, or other payment provided for herein, is in arrears, and remains unpaid for fifteen (15) days after the same is due. In the event of a default as to any other provision of this lease, the Board shall give no less than thirty (30) days written notice to Lessee of its intention to so terminate, at the end of which time all the rights of Lessee hereunder shall terminate unless such default, which shall have been stated in such notice, shall have been cured within such thirty (30) days; provided, however, the Lessee shall be allowed only two such notices in any 12 month period which it may cure within the time specified in this paragraph. The third such notice in any 12-month period shall be final and shall cancel and terminate all of the rights hereunder of the Lessee, without any right on the part of the Lessee to cure default after receiving such notice.

Further, in the event the Lessee shall engage in any activity or practice (except as herein specifically permitted) which hinders or interferes with the proper use and operation of the Airport, then the Airport may order the Lessee to forthwith cease and desist from such activity or practice, and should the Lessee fail or refuse to comply with any such order within thirty (30) days, then the Airport may, at its option, cancel and terminate this lease.

In the event of cancellation and termination of this lease by the Board as herein provided, the Lessee shall be liable to the Board for the balance of the rent herein reserved and all costs of collection, including reasonable attorney's fees.

In event of the death of Lessee the lease will automatically terminate at the end of the month in which death occurs. In the event of a disability of Lessee rendering Lessee unable to perform under this lease, lease shall be terminable by Lessee upon thirty (30) days written notice to the Board. The Lessee may negotiate with the Lessor for the suspension or reduction of the payment of fees called for under this Agreement during any period that the

Cheyenne Regional Airport is not operated by the Lessor for use by certified scheduled air carriers.

18. **TAXES, LICENSES, DEBTS:** The Lessee covenants and agrees to pay promptly all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by it in connection with its operation of said business on the leased premises, and not permit the same to become delinquent and to suffer no lien, mortgage, judgment or execution to be filed against said property or improvements thereon which will in any way be an impairment to the right of the Board under this lease.
19. **INSURANCE:** At all times during the term of this lease, and of any renewal or extension hereof, Lessee agrees that it will, at its own cost and expense, provide and keep in force for the benefit of the Lessee and the Board as additional insured, a policy or policies of insurance as follows:
- A. Bodily injury and property damage combined single limit liability insurance in an amount not less than \$1,000,000.
 - B. Property damage on Lessee personal property in an amount sufficient to replace all fixtures.

Certificates evidencing such insurance as current and active shall be kept on file in the Airport Administration office at all times during the term of the lease.

20. **INDEMNIFICATION OF BOARD AGAINST CLAIMS OF PERSONAL INJURY OR PROPERTY DAMAGE:** Lessee shall defend, indemnify and hold the Board harmless from and against any claim, loss, expense or damage to any person or property in or upon the leased premises or any area allocated to or used exclusively by Lessee or its agents, employees or invitees, arising out of Lessee's use or occupancy of said premises, or any act or neglect of Lessee or Lessee's servants, employees or agents, or any change, alteration or improvement made by Lessee in the leased premises.

21. **WAIVERS**: No waiver or default by the Board of any of the terms, covenants, or conditions to be performed, kept, and observed by the Lessee shall be construed as, or operate as, a waiver by the Board of any subsequent default of any of the terms, covenants or conditions herein contained to be performed, kept, and observed by the Lessee.
22. **SURRENDER AND HOLDING OVER**: The Lessee covenants that at the expiration of the period for which the demised premises are leased to it, or at the earlier termination of the letting thereof, it will quit, and surrender said premises in good state and condition, reasonable wear and tear excepted. Should the Lessee hold over the use of or continue to occupy the demised premises after expiration of the lease, such holding over will be as a tenant at sufferance for which use it shall pay rent at double the amount herein provided and, in addition, be liable for any and all damages resulting from such tenancy.
23. **QUIET ENJOYMENT**: The Board covenants for itself, its successors and assigns that Lessee, upon payment of the rent and performance of Lessee's other covenants herein, shall and may peaceably and quietly have, hold, and enjoy the demised premises during the term of this lease.
24. **NOTICES**: Any notices required or given hereunder shall be given by first class mail, telegram or personal delivery addressed to the respective addresses below, or such other address as may be specified in writing from time to time:

BOARD

Cheyenne Regional Airport Board
Peter S. Illoway, President
P.O. Box 2210
Cheyenne, WY 82003

LESSEE

Billy Jack's Pizza – Wyoming LLC
Bill J. Winberg, President
P.O. Box 818
Kearney, NE 68848

25. **SECURITY**: In addition to Lessee's responsibilities to maintain the premises as provided herein, it shall particularly maintain the premises in such a manner as to keep them secure from unauthorized intrusion and shall, with respect to any area of the premises opening to the air operations area of the airport, provide for an adequate security system designed to

prevent unauthorized persons or vehicles from entering such air operations area. An "air operations area" means any area of the airport used or intended to be used for landing, takeoff, or surface maneuvering of aircraft. An "adequate security system" means providing for security at a standard no less than required and set out in Part 1542, Transportation Security Regulations., as amended. At any time during the term hereof, when Lessee is requested in writing by the Board, the Lessee shall submit to the Board the security plans that are to be used and are being used by the Lessee on any or all of the premises, and the Director of Aviation reserves the right in his absolute discretion to require any different or further security provisions to be implemented and maintained by the Lessee.

26. **TERMINATION OF LEASE UPON CONDEMNATION – RENT APPORTIONMENT ENTIRE AWARD TO BOARD:** If the leased property, or any party thereof is taken by eminent domain or sold under the threat of the exercise of said power (all of which are herein called "condemnation"), this lease shall expire on the date when the leased property shall be so taken, and the rent shall be apportioned as of that date. No part of any award shall belong to the Lessee.
27. **RESTORATION BY BOARD OF PROPERTY DESTROYED BY INSURED CASUALTY TENANT TO REPLACE TRADE FIXTURES -- PROPORTIONATE RENT ABATEMENT BOARD'S OPTION TO TERMINATE:** If the leased premises or the building containing it should be damaged or destroyed during the lease term by fire or other insurable casualty without the fault of the Lessee, the Board shall, subject to the time that elapses due to adjustment of fire insurance, repair and/or restore the same to substantially the condition it was in immediately prior to such damage or destruction, except as in this Article provided. The Board's obligation under this Article shall in no event exceed the scope of the work required to be done by the Board in the original construction of the building. The Board shall not be required to, but Lessee shall, with due dispatch, replace or restore forthwith any trade fixtures, signs or other installations theretofore installed by

Lessee. Rent payable under this lease, shall be abated proportionately according to the floor area of the leased premises which is usable by the Lessee, but if such damage was caused by the fault of the Lessee, there shall be no abatement of rent. Such abatement shall continue for the period commencing with such damage or destruction and ending with the completion by the Board of such work of repair and/or reconstruction as the Board is obligated to do. If, however, the leased premises or the building containing it should be damaged or destroyed by any cause so that the Board shall decide to demolish, abandon or to completely rebuild the leased premises or the building containing it, the Board may, within 60 days after such damage or destruction, give Lessee written notice of such decision and thereupon this lease shall be deemed to have terminated as of the date of the damage or destruction and Lessee shall immediately quit and surrender the leased premises to the Board.

29. **OTHER AGREEMENTS:**

- A. **Declaration of Governing Law.** This lease shall be governed by, construed, and enforced in accordance with the laws of the State of Wyoming.
- B. **Plural, Singular, Gender to be Read in Context.** Any word contained in the text of this lease shall be read as the singular or the plural and as the masculine, feminine or neuter gender as may be applicable in the particular context.
- C. **Joint and Several Obligation of Lessee, Partners.** If there is more than one party tenant, the covenants of the Lessee shall be the joint and several obligations of each such party, and, if the Lessee is a partnership, the covenants of the Lessee shall be the joint and several obligations of each of the partners and the obligations of the firm.
- D. **Binding Effect on Parties, Representatives, Successors and Assigns.** The provisions of this lease shall be binding on and inure to the benefit of the parties, their legal representatives, successors and permitted assigns.
- E. **Parties have relationship of landlord and Tenant-Not Principal-Agent, Partners or Joint Venturers.** Nothing contained in this lease shall be deemed or construed to create

the relationship of principal and agent or of partnership or of joint venture or of any association whatsoever between the Board and the Lessee, it being expressly understood and agreed that neither the computation of rent nor any other provisions contained in this lease nor any act or acts of the parties hereto shall be deemed to create any relationship between the Board and the Lessee other than the relationship of landlord and tenant.

- F. **Captions for Convenience-Not part of Lease-Not to Limit or Amplify Lease.** The captions of this lease are for convenience only, are not a part of the lease, and do not in any way limit or amplify the terms and provisions hereof.
- G. **Identification of Leased Premises by Annexed Plan.** The plan attached to and made a part of this lease, except as otherwise specifically provided, is used solely for the purpose of identifying or designating the leased premises. Any marking, measurements, dimensions or notes of any kind contained therein have no bearing with respect to the terms and conditions of this lease and are not to be considered a part hereof.
- H. **Prior Representations Incorporated into Lease-No Representations Warranties or Promises by Landlord, Agents or Representatives.** All negotiations, considerations, representations, and understandings between the parties are incorporated in this lease, and Lessee acknowledges that the Board, its agents, and representatives, have made no representations, warranties, or promises with respect to the leased premises except as may be expressly set forth herein.
- I. **Entire Agreement-Modification in Writing, Signed and Delivered by Both Parties.** This lease contains all of the agreements and representations between the parties. None of the terms of this lease shall be modified to any extent, except by a written instrument signed and delivered by both parties.
- J. **Severability of Invalid or Unenforceable Clause-Remainder of Lease Enforceable-Clause Applicable to Other Persons and Circumstances.** If any clause, phrase, provision or portion of this lease or the application thereof to any person or circumstance

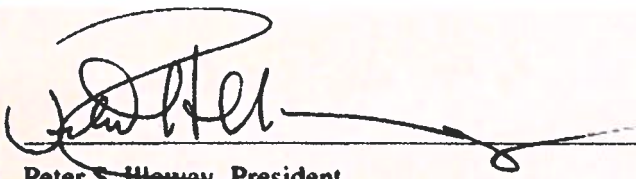
shall be invalid, or unenforceable under applicable law, such event shall not affect, impair, or render invalid or unenforceable the remainder of this lease, nor any other clause, phrase, provision, or portion hereof, nor shall it affect the application of any clause, phrase, provision, or portion hereof to other persons or circumstances.

30. **Non-waiver of Governmental Immunity.** Owner expressly reserves its right to invoke governmental immunity for any claim in tort or contract arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 et seq. Nothing herein shall constitute a waiver of any immunity in part or in whole by Owner.
31. **Mariano Doctrine.** Lessee is hereby on notice of the Mariano doctrine as articulated by the Wyoming Supreme Court in the case of Mariano & Associates, P.C. v Board of County Commissioners of Sublette County 737 P.2d 323, Wyo., 1987 and its progeny. The Town acting through its governing body may not be empowered to bind any future governing body to the terms of this agreement and specifically reserves all rights granted to future governing bodies to terminate this agreement pursuant to law.

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed as of the day and year first above written.

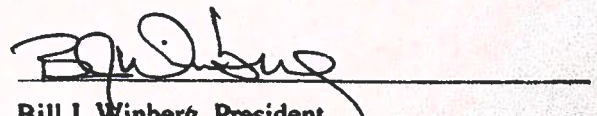
CHEYENNE REGIONAL AIRPORT BOARD

BY:


Peter S. Howay, President

BILLY JACK'S WYOMING LLC

BY:


Bill J. Winberg, President



January 26, 2022

Mayor Patrick Collins and Members of City Council
2101 O'Neil Avenue
Cheyenne, WY 82001

Dear Mayor Collins and Members of City Council;

I am writing on behalf of Billy Jack's Pizza Pub regarding our company's entry into a new market in Cheyenne, Wyoming and to introduce our company to you. Our company redefines fast casual dining backed by top-notch customer service. We are currently operating in markets located in Nebraska and exploring locations in Wyoming and Colorado. We are excited to be expanding our reach to the Cheyenne area.

Our first location in Cheyenne will be located at the Cheyenne Regional Airport. We are excited to be associated with this essential transportation hub which will contribute to many sectors of the state and city's economy and add to the quality of life for Cheyenne residents, businesses and visitors.

The benefit of our fast casual dining restaurant being located in the Cheyenne Regional Airport terminal will help increase the direct economic return to the city of Cheyenne and the greater Laramie County region as our target customers will be those traveling to/from Cheyenne and those who call Cheyenne home.

Billy Jack's Pizza Pub and our fifty local Cheyenne investors look forward to bringing a feeling of a hometown gathering place to the growth at the Cheyenne Regional Airport. We also look forward to working with our community partners to benefit all citizens in the Cheyenne community.

Please feel free to contact me at your earliest to discuss any questions you may have.

Thank you, and I look forward to hearing from you.

Kindest regards,

Bill Winberg, Owner/CEO
Billy Jack's Pizza Pub

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

Billy Jack's - Wyoming, LLC

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **23rd** day of **July, 2021** at **8:20 AM**.

Remainder Intentionally left blank.



Filed Date: 07/23/2021

Edward A. Buchanan

Secretary of State

Filed Online By:

Theresa Brammier

on 07/23/2021

Alcohol Training for Billy Jack's

We will be doing online training through Wyoming State Liquor Association. All employee's will be TIPS trained and certified through online training.

Billy Jack's Wyoming LLC

Business Plan –

Billy Jack's will be in the Cheyenne Regional Airport Terminal. It will be the anchor business in the terminal. We will have operating hours from 7am till 10 pm to start with. We will adjust these hours based on demand and flight schedules as the airport grows in number of flights in and out of Cheyenne. We will have a menu consisting of Pizza, Salads, Subs, and some appetizers for guest to choose from. We also have a few kids' friendly items. Our target market is Families and individuals in Cheyenne along with people flying in and out of the airport. We want to become a fun gathering place for the community of Cheyenne. We will employee approximately 30 employees at the airport location with a starting wage of \$9.00 hr plus tip pool. This should net our employees an hourly wages of approximately \$16.00 an hour. We currently have 1 location in Kearney NE and are opening two locations here in Cheyenne. The second location in Cheyenne will be a delivery hub only at this time located on S. Greeley HWY. We are looking in long term to franchise Billy Jack's to other communities. We have the backing of 50 local investors here in the Cheyenne area. We have a target date of opening in early April of 2022 or sooner if possible.